(1) The claimant will be required to submit in support of claims for damage to fences, buildings, motor vehicles, and similar property which has been repaired or replaced, an itemized bill for repairs or replacements certified to as correct by the repairman or other proper party or, if paid, an itemized receipt evidencing payment; if not repaired or replaced a signed itemized estimate or estimates of the cost thereof.

(2) In support of claims for damage to crops, trees, land, or similar property, the claimant will be required to submit an itemized signed estimate or estimates of the cost of repairs or restoration, supported by evidence of the number of acres of land or of crops or trees alleged to have been damaged, the normal yield per acre and the market value of the property per unit of measure common to the property damaged, or the estimated length of time the land will be unfit for grazing and the normal rental value per acre of similar land in the vicinity.

(e) *Claims for use or occupancy of land.* Claims for damage to land or crops will not include a charge for the use or occupancy of the land by the National Guard, which is a question of payment to be made under the contract of lease of occupancy.

(f) *Claims based on contracts.* If the claim is based on contract, a copy of the contract or specific reference to the provisions thereof will be furnished by the claimant.

(g) *Signatures.* All papers signed by the claimant in connection with a particular case will bear identical signatures.

§ 1101.54 *Air National Guard claims.* Claims arising subsequent to July 1, 1949 and not to exceed $500 in any one claim for damages to or loss of private property incident to the operation of Air National Guard camps of instruction either during the stay of Air National Guard units at such camps or while en route thereto or therefrom may be forwarded to the National Guard Bureau for onward transmission to the Secretary of the Air Force.

§ 1101.55 *Claims against the Army National Guard.* Except as required in the discharge of his proper official duties, no person in the military service of or employed by the Army National Guard will furnish any information which can be used as a basis for a claim against the Army National Guard or aid or assist in the prosecution or support of a claim against the Army National Guard. Claimants or their authorized representatives shall not be permitted to examine any part of the evidence of record, except that submitted by such claimants, without prior approval of the office of the Chief, National Guard Bureau. (In this connection see § 536.10, Chapter V of this Title.)

§ 1101.56 *Claims against the United States.* (a) Except as required in the discharge of his proper official duties, no person in the military service of or employed by the Army National Guard will furnish any information which can be used as the basis for a claim against the United States or aid or assist in the prosecution or support of a claim against the United States.

(b) Claims for damage to or loss or destruction of property, real or personal, or for personal injury or death caused by military personnel or civilian employees of the Department of the Army or of the Army while acting within the scope of their employment, or otherwise incident to noncombat activities of the Department of the Army or of the Army, including claims for damage to or loss or destruction, by criminal acts, of registered or insured mail while in the possession of the United States military authorities, claims for damage to or loss or destruction of personal property bailed to the Government and claims for damages to real property incident to the use and occupancy thereof, whether under a lease to the Government of the United States, express or implied, or otherwise, except those cognizable under the "Federal Tort Claims Act," are cognizable under the act of July 3, 1943 (57 Stat. 372; 31 U. S. C. 223b), as amended, as supplemented by §§ 536.12 through 536.23, Chapter V of this Title.

(c) Claims for damage to or loss of property or for personal injury or death, arising on or after January 1, 1945, within the United States or its territorial possessions, caused by the negligent or wrongful act or omission of military personnel or civilian employees of the Government while acting within the scope of their office or employment are cognizable under the "Federal Tort Claims Act," as supplemented by § 536.29, Chapter V of this Title.

§ 1101.57 *Federal Tort Claims Act.* The National Guard, when not in the Federal service, is not a Federal agency within the meaning of the "Federal Tort Claims Act" (60 Stat. 842, 28 U. S. C. 941, as revised and codified in the act of June 25, 1948, 62 Stat. 982, 28 U. S. C. 2671) and claims arising out of activities of the National Guard are, therefore, not cognizable under that act.

[SEAL] EDWARD F. WITSELL,
Major General, U. S. A.,
The Adjutant General.

[F. R. Doc. 50-1772; Filed, Mar. 3, 1950; 8:53 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 634]

NORTH DAKOTA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 5258 OF JANUARY 9, 1930

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U. S. C. title 43, sec. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 5258 of January 9, 1930, temporarily withdrawing certain public lands in North Dakota for classification and in aid of legislation, is hereby revoked so far as it affects the public lands within the following-described areas:

FIFTH PRINCIPAL MERIDIAN

T. 163 N., R. 57 W.,
Secs. 7 and 8.
T. 163 N., R. 58 W.,
Secs. 12, 13, and 25.
T. 164 N., R. 58 W.,
Secs. 31 and 32.
T. 151 N., R. 62 W.,
Secs. 23, 30, and 34.
T. 153 N., R. 63 W.,
Secs. 8 and 13.
T. 153 N., R. 64 W.,
Sec. 15.
T. 152 N., R. 65 W.,
Secs. 9, 10, 14, 15, and 16.
T. 152 N., R. 66 W.,
Secs. 13, 24, 25, 30, and 35.
T. 153 N., R. 66 W.,
Sec. 13.
T. 154 N., R. 66 W.,
Secs. 20 and 21.
T. 152 N., R. 67 W.,
Sec. 27.
T. 153 N., R. 67 W.,
Sec. 35.
T. 162 N., R. 70 W.,
Sec. 20.
T. 162 N., R. 71 W.,
Secs. 2 and 29.
T. 163 N., R. 72 W.,
Sec. 7.
T. 163 N., R. 73 W.,
Secs. 18 and 24.
T. 164 N., R. 73 W.,
Sec. 29.
T. 154 N., R. 74 W.,
Sec. 30.
T. 162 N., R. 74 W.,
Sec. 5.
T. 163 N., R. 74 W.,
Sec. 33.
T. 164 N., R. 74 W.,
Secs. 25 and 33.
T. 152 N., R. 75 W.,
Sec. 2.
T. 153 N., R. 75 W.,
Sec. 31.
T. 156 N., R. 75 W.,
Sec. 2.
T. 163 N., R. 76 W.,
Sec. 5.
T. 155 N., R. 78 W.,
Sec. 28.
T. 155 N., R. 79 W.,
Sec. 1.

The areas described, including ceded Indian lands and public and non-public lands, aggregate 25,428.83 acres.

The lands are primarily suitable for grazing purposes.

The public lands in sec. 20, T. 162 N., R. 70 W., and secs. 2 and 29, T. 162 N., R. 71 W., are subject to the reservation for the Turtle Mountain Band of Chippewa Indians made by an Executive Order of December 21, 1882, as modified by Executive orders of March 29 and June 3, 1884.

The undisposed-of lands in the sections listed in T. 151 N., R. 62 W., and Tps. 152 N., Rs. 65, 66, and 67 W., are ceded Devies Lake Indian lands, which are subject only to disposition under the homestead and townsite laws and at public sale under section 2455 of the Revised Statutes (U. S. C., title 43, sec. 1171), as amended, with payment of the Indian price of such lands, pursuant to the act of April 27, 1904, 33 Stat. 319, and the Proclamations of June 2, 1904, 33 Stat. 2368, and June 8, 1907, 35 Stat. 2143.

No applications for the remaining lands released by the revocation made

by this order may be allowed under the homestead, small-tract, or desert-land laws, or under any other nonmineral public-land laws unless the lands applied for have already been classified as suitable or valuable for such type of application or shall be so classified upon consideration of the application.

Except as to the lands subject to the said reservation for the Turtle Mountain Band of Chippewa Indians, this order shall not become effective to change the status of the lands affected by the revocation made hereby until 10:00 a. m. on the 35th day after the date of this order. At that time such lands (other than those subject to the said reservation) shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, such lands shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation, except that the ceded Indian lands shall not be subject to application under the desert-land laws or the Small Tract Act of June 1, 1938. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in Bureau of Land Management, Washington 25, D. C. shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that Title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that Title.

Inquiries concerning these lands shall be adressed to Bureau of Land Management, Washington 25, D. C.

OSCAR L. CHAPMAN,
Secretary of the Interior.

FEBRUARY 28, 1950.

[F. R. Doc. 50-1746; Filed, Mar. 3, 1950; 8:48 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[S. O. 844, Corrected Amdt. 1]

PART 95—CAR SERVICE

FURNISHING OF CARS FOR RAILROAD LOCOMOTIVE FUEL COAL SUPPLY

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 24th day of February A. D. 1950.

Upon further consideration of Service Order No. 844 (14 F. R. 7765, 15 F. R. 1087), and good cause appearing therefor: It is ordered, that:

Section 95.844, *Furnishing of cars for railroad locomotive fuel coal supply*, of Service Order No. 844 be, and it is hereby further amended by substituting the following paragraph (e) for paragraph (e) thereof:

(e) *Expiration date.* This section shall expire at 11:59 p. m., April 25, 1950, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p. m., February 25, 1950.

It is further ordered, that a copy of this amendment and direction shall be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 50-1776; Filed, Mar. 3, 1950; 9:08 a. m.]

PROPOSED RULE MAKING

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR, Part 3]

[Docket Nos. 8736, 8975, 8976, 9175]

TELEVISION BROADCAST SERVICE

INFORMATION RESPECTING PENDING PATENT APPLICATIONS

In the matter of amendment of § 3.606 of the Commission's rules and regulations, Dockets Nos. 8736 and 8975; amendment of the Commission's rules and regulations and Engineering Standards Concerning the Television Broadcast Service, Docket No. 9175; utilization of frequencies in the band 470 to 890 Mcs. for television broadcasting, Docket No. 8976.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 21st day of February 1950;

The Commission having under consideration the several responses to its notice of September 1, 1949 (FCC 49–1197) requesting that each person a party to the above proceeding "who owns or has the right to sublicense inventions relating to television transmitters or receivers for either monochrome or color transmissions which are described and claimed in one or more patent applications now pending in the United States Patent Office" shall file abstracts of such applications and Powers to Inspect the same at the United States Patent Office;

It appearing, that there is possible misunderstanding of the scope of the September 1, 1949, notice, i. e., the pending patent applications covered by said notice;

It further appearing, that there is possible misunderstanding as to the pro-